

বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: Dhaka

498

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনে রিভিশন
নং

Md. Imran Hossain @ Zitu

আবেদনকারী

মাধ্যম

Mr. Mohammad Shahin Howlader, Advocate

বনাম

The State

Mr. Sujit Chatterjee, DAG with

Ms. Farhana Afroze Runa, A. A. G with

Mr. Abdul Aziz Masud, A. A. G. with

Md. Shamim Khan, A. A. G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	<u>28.01.2024</u>	Let a Rule be issued calling upon the opposite party to show cause as to why the accused-petitioner should not be enlarged on bail in Shahjahanpur Police Station Case No.18 dated 25.03.2022 corresponding to G. R. No.83 of 2022 under sections 302/34 of the Penal Code, 1860, now pending in the Court of learned Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper. The Rule is made returnable within 6(six) weeks from date. Mr. Mohammad Shahin Howlader learned	

	Advocate for the petitioner submits that in this case under sections 302/34 of the Penal Code the Petitioner was not suspected in the FIR nor he made any confession under section 164 of the Code of Criminal Procedure. In this case three Co-accuseds namely Md. Nasir Uddin @ Manik, Masum Mohammad Akas and Sumon Shikdar @ Musa made a separate confession under section 164 of the Code of Criminal Procedure. Co-accused Md. Nasir Uddin @ Manik and Masum Mohammad Akas did not mention the name of the petitioner. Co-accused Sumon Shikdar mentioned the name of one Zitu stating that Zitu who is the brother of Zisan. But the petitioner is not the brother of Zisan. Co-accused Md. Rakibur Rahman @ Rakib and Md. Hafizul Islam @ Hafiz who stand on the same footing like the petitioner have been granted ad-interim bail by this court vide Criminal Miscellaneous Case No.42765 of 2022 and Criminal Miscellaneous Case No.55627 of 2022 on 17.10.2022. Mr. Sujit Chatterjee learned Deputy Attorney General opposes the petition for bail but frankly concedes that co-accused Sumon mentioned the name of Zitu identifying him as the brother of Zisan but the petitioner is not the brother of Zisan. Pending disposal of the Rule, let the accused petitioner Md. Imran Hossain @ Zitu, son of Md. Abul Hossain be enlarged on ad-interim bail for six (6) months on furnishing bail bonds to the satisfaction of the Chief Metropolitan Magistrate, Dhaka and also depositing his passport. The concern Court is at liberty to cancel the bail, if the accused-petitioner misuses the privilege of bail. Let this matter be placed in the list for hearing on 07.05.2024.
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দ্রষ্টব্যঃ কালো কালিতে অফিস নোটের একটি ক্রমিক নম্বর এবং লাল কালিতে কোর্টের আদেশের আরেকটি ক্রমিক নম্বর হইবে।

নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩